



Parliamentary Constituencies Act 1986

1986 CHAPTER 56

An Act to consolidate the House of Commons (Redistribution of Seats) Acts 1949 to 1979 and certain related enactments. [7th November 1986]

B E IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) There shall for the purpose of parliamentary elections be the county and borough constituencies (or in Scotland the county and burgh constituencies), each returning a single member, which are described in Orders in Council made under this Act. Parliamentary constituencies.

(2) In this Act and, except where the context otherwise requires, in any Act passed after the Representation of the People Act 1948, “constituency” means an area having separate representation in the House of Commons. 1948 c. 65.

2.—(1) For the purpose of the continuous review of the distribution of seats at parliamentary elections, there shall continue to be four permanent Boundary Commissions, namely a Boundary Commission for England, a Boundary Commission for Scotland, a Boundary Commission for Wales and a Boundary Commission for Northern Ireland. The Boundary Commissions.

(2) Schedule 1 to this Act shall have effect with respect to the constitution of, and other matters relating to, the Boundary Commissions.

**Reports of the
Commissions.**

3.—(1) Each Boundary Commission shall keep under review the representation in the House of Commons of the part of the United Kingdom with which they are concerned and shall, in accordance with subsection (2) below, submit to the Secretary of State reports with respect to the whole of that part of the United Kingdom, either—

- (a) showing the constituencies into which they recommend that it should be divided in order to give effect to the rules set out in paragraphs 1 to 6 of Schedule 2 to this Act (read with paragraph 7 of that Schedule), or
- (b) stating that, in the opinion of the Commission, no alteration is required to be made in respect of that part of the United Kingdom in order to give effect to the said rules (read with paragraph 7).

(2) Reports under subsection (1) above shall be submitted by a Boundary Commission not less than ten or more than fifteen years from the date of the submission of their last report under that subsection.

(3) Any Boundary Commission may also from time to time submit to the Secretary of State reports with respect to the area comprised in any particular constituency or constituencies in the part of the United Kingdom with which they are concerned, showing the constituencies into which they recommend that that area should be divided in order to give effect to the rules set out in paragraphs 1 to 6 of Schedule 2 to this Act (read with paragraph 7 of that Schedule).

(4) A report of a Boundary Commission under this Act showing the constituencies into which they recommend that any area should be divided shall state, as respects each constituency, the name by which they recommend that it should be known, and whether they recommend that it should be a county constituency or a borough constituency (or in Scotland a county constituency or a burgh constituency).

(5) As soon as may be after a Boundary Commission have submitted a report to the Secretary of State under this Act, he shall lay the report before Parliament together, except in a case where the report states that no alteration is required to be made in respect of the part of the United Kingdom with which

the Commission are concerned, with the draft of an Order in Council for giving effect, whether with or without modifications, to the recommendations contained in the report.

(6) Schedule 2 to this Act which contains the rules referred to above and related provisions shall have effect.

4.—(1) The draft of any Order in Council laid before Parliament by the Secretary of State under this Act for giving effect, whether with or without modifications, to the recommendations contained in the report of a Boundary Commission may make provision for any matters which appear to him to be incidental to, or consequential on, the recommendations. Orders in Council.

(2) Where any such draft gives effect to any such recommendations with modifications, the Secretary of State shall lay before Parliament together with the draft a statement of the reasons for the modifications.

(3) If any such draft is approved by resolution of each House of Parliament, the Secretary of State shall submit it to Her Majesty in Council.

(4) If a motion for the approval of any such draft is rejected by either House of Parliament or withdrawn by leave of the House, the Secretary of State may amend the draft and lay the amended draft before Parliament, and if the draft as so amended is approved by resolution of each House of Parliament, the Secretary of State shall submit it to Her Majesty in Council.

(5) Where the draft of an Order in Council is submitted to Her Majesty in Council under this Act, Her Majesty in Council may make an Order in terms of the draft which (subject to subsection (6) below) shall come into force on such date as may be specified in the Order and shall have effect notwithstanding anything in any enactment.

(6) The coming into force of any such Order shall not affect any parliamentary election until a proclamation is issued by Her Majesty summoning a new Parliament, or affect the constitution of the House of Commons until the dissolution of the Parliament then in being.

(7) The validity of any Order in Council purporting to be made under this Act and reciting that a draft of the Order has been approved by resolution of each House of Parliament shall not be called in question in any legal proceedings whatsoever.

Notices.

5.—(1) Where a Boundary Commission intend to consider making a report under this Act they shall, by notice in writing, inform the Secretary of State accordingly, and a copy of the notice shall be published—

- (a) in a case where it was given by the Boundary Commission for England or the Boundary Commission for Wales, in the London Gazette,
- (b) in a case where it was given by the Boundary Commission for Scotland, in the Edinburgh Gazette, and
- (c) in a case where it was given by the Boundary Commission for Northern Ireland, in the Belfast Gazette.

(2) Where a Boundary Commission have provisionally determined to make recommendations affecting any constituency, they shall publish in at least one newspaper circulating in the constituency a notice stating—

- (a) the effect of the proposed recommendations and (except in a case where they propose to recommend that no alteration be made in respect of the constituency) that a copy of the recommendations is open to inspection at a specified place within the constituency, and
- (b) that representations with respect to the proposed recommendations may be made to the Commission within one month after the publication of the notice ;

and the Commission shall take into consideration any representations duly made in accordance with any such notice.

(3) Where a Boundary Commission revise any proposed recommendations after publishing a notice of them under subsection (2) above, the Commission shall comply again with that subsection in relation to the revised recommendations, as if no earlier notice had been published.

Local inquiries.

6.—(1) A Boundary Commission may, if they think fit, cause a local inquiry to be held in respect of any constituency or constituencies.

(2) Where, on the publication of the notice under section 5(2) above of a recommendation of a Boundary Commission for the alteration of any constituencies, the Commission receive any representation objecting to the proposed recommendation from an interested authority or from a body of electors numbering one hundred or more, the Commission shall not make the recommendation unless, since the publication of the notice, a local inquiry has been held in respect of the constituencies.

(3) Where a local inquiry was held in respect of the constituencies before the publication of the notice mentioned in subsection (2) above, that subsection shall not apply if the

Commission, after considering the matters discussed at the local inquiry, the nature of the representations received on the publication of the notice and any other relevant circumstances, are of opinion that a further local inquiry would not be justified.

(4) In subsection (2) above, “interested authority” and “elector” respectively mean, in relation to any recommendation, a local authority whose area is wholly or partly comprised in the constituencies affected by the recommendation, and a parliamentary elector for any of those constituencies; and for this purpose “local authority” means—

- (a) in England and Wales, the council of a county, London borough or district,
- (b) in Scotland, the council of a region, islands area or district, and
- (c) in Northern Ireland, the council of a district.

(5) Subsections (2) and (3) of section 250 of the Local Government Act 1972 (which relate to the attendance of witnesses at inquiries) shall apply in relation to any local inquiry which the Boundary Commission for England or the Boundary Commission for Wales may cause to be held in pursuance of this Act. 1972 c. 70.

(6) In relation to any local inquiry which the Boundary Commission for Scotland may cause to be held in pursuance of this Act, the said subsections (2) and (3) shall apply as if that Act applied to Scotland but with the substitution of references to an order for references to a summons.

(7) In relation to any local inquiry which the Boundary Commission for Northern Ireland may cause to be held in pursuance of this Act, sections 19 and 20 of the Poor Relief (Ireland) (No. 2) Act 1847 shall apply. 1847 c. 90.

7. Schedule 3 to this Act shall have effect.

Consequential amendments.

8.—(1) The enactments specified in Schedule 4 to this Act are hereby repealed to the extent specified in the third column of that Schedule. Repeals and revocation.

(2) Article 2(7) of the Local Government Reorganisation (Northern Ireland) Order 1973 is hereby revoked. S.I. 1973/2095.

(3) Where a period of time specified in any enactment repealed by this Act is current at the commencement of this Act, this Act shall have effect as if the corresponding provision of this Act had been in force when the period began to run.

Citation,
commence-
ment and
extent.

9.—(1) This Act may be cited as the Parliamentary Constituencies Act 1986, and shall be included among the Acts which may be cited as the Representation of the People Acts.

(2) This Act shall come into force at the end of the period of three months beginning with the day on which it is passed.

(3) This Act extends to Northern Ireland.

SCHEDULES

SCHEDULE 1

Section 2.

THE BOUNDARY COMMISSIONS

Constitution

1. The Speaker of the House of Commons shall be the chairman of each of the four Commissions.

2. Each of the four Commissions shall consist of the chairman, a deputy chairman and two other members appointed by the Secretary of State.

3. The deputy chairman—

- (a) in the case of the Commission for England shall be a judge of the High Court appointed by the Lord Chancellor,
- (b) in the case of the Commission for Scotland shall be a judge of the Court of Session appointed by the Lord President of the Court of Session,
- (c) in the case of the Commission for Wales shall be a judge of the High Court appointed by the Lord Chancellor,
- (d) in the case of the Commission for Northern Ireland shall be a judge of the High Court in Northern Ireland appointed by the Lord Chief Justice of Northern Ireland.

4. A member of any Commission (other than the chairman) shall hold his appointment for such term and on such conditions as may be determined before his appointment by the person appointing him.

Officers

5. The officers of each Commission shall include, as assessors, the following persons—

- (a) in the case of the Commission for England, the Registrar General for England and Wales and the Director General of Ordnance Survey,
- (b) in the case of the Commission for Scotland, the Registrar General of Births, Deaths and Marriages for Scotland and the Director General of Ordnance Survey,
- (c) in the case of the Commission for Wales, the Registrar General for England and Wales and the Director General of Ordnance Survey,
- (d) in the case of the Commission for Northern Ireland, the Registrar General of Births and Deaths in Northern Ireland, the Commissioner of Valuation for Northern Ireland and the Chief Electoral Officer for Northern Ireland.

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6.—(1) The Secretary of State may, at the request of any Commission, appoint one or more assistant Commissioners to inquire into, and report to the Commission upon, such matters as the Commission think fit.

(2) Any such assistant Commissioner shall be appointed either for a certain term or for the purposes of a particular inquiry, and on such conditions as to remuneration and otherwise as may be determined before his appointment by the Secretary of State with the approval of the Treasury.

7. The Secretary of State shall appoint a secretary to each of the Commissions, and may appoint such other officers of any Commission as he may determine with the approval of the Treasury, and the term and conditions of any such appointment shall be such as may be so determined.

Expenses

8. The expenses of each Commission, including the travelling and other expenses of the members and the remuneration and expenses of the assistant Commissioners, secretary and other officers, shall be paid out of money provided by Parliament.

Proceedings and instruments

9. A Commission shall have power to act notwithstanding a vacancy among their members, and at any meeting of a Commission two, or such greater number as the Commission may determine, shall be the quorum.

10. For the purpose of considering any matter of common concern, the Commissions, or any two or three of them, may hold joint meetings.

11. Subject to the provisions of this Act, each of the Commissions shall have power to regulate their own procedure.

12. Every document purporting to be an instrument made or issued by a Commission and to be signed by the secretary or any person authorised to act in that behalf, shall be received in evidence and shall, until the contrary is proved, be deemed to be an instrument made or issued by the Commission.

Section 3.

SCHEDULE 2

RULES FOR REDISTRIBUTION OF SEATS

The rules

1.—(1) The number of constituencies in Great Britain shall not be substantially greater or less than 613.

(2) The number of constituencies in Scotland shall not be less than 71. SCH. 2

(3) The number of constituencies in Wales shall not be less than 35.

(4) The number of constituencies in Northern Ireland shall not be greater than 18 or less than 16, and shall be 17 unless it appears to the Boundary Commission for Northern Ireland that Northern Ireland should for the time being be divided into 16 or (as the case may be) into 18 constituencies.

2. Every constituency shall return a single member.

3. There shall continue to be a constituency which shall include the whole of the City of London and the name of which shall refer to the City of London.

4.—(1) So far as is practicable having regard to rules 1 to 3—

(a) in England and Wales,—

(i) no county or any part of a county shall be included in a constituency which includes the whole or part of any other county or the whole or part of a London borough,

(ii) no London borough or any part of a London borough shall be included in a constituency which includes the whole or part of any other London borough,

(b) in Scotland, regard shall be had to the boundaries of local authority areas,

(c) in Northern Ireland, no ward shall be included partly in one constituency and partly in another.

(2) In sub-paragraph (1)(b) above “area” and “local authority” have the same meanings as in the Local Government (Scotland) 1973 c. 65. Act 1973.

5. The electorate of any constituency shall be as near the electoral quota as is practicable having regard to rules 1 to 4; and a Boundary Commission may depart from the strict application of rule 4 if it appears to them that a departure is desirable to avoid an excessive disparity between the electorate of any constituency and the electoral quota, or between the electorate of any constituency and that of neighbouring constituencies in the part of the United Kingdom with which they are concerned.

6. A Boundary Commission may depart from the strict application of rules 4 and 5 if special geographical considerations, including in particular the size, shape and accessibility of a constituency, appear to them to render a departure desirable.

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General and supplementary

7. It shall not be the duty of a Boundary Commission to aim at giving full effect in all circumstances to the above rules, but they shall take account, so far as they reasonably can—

- (a) of the inconveniences attendant on alterations of constituencies other than alterations made for the purposes of rule 4, and
- (b) of any local ties which would be broken by such alterations.

8. In the application of rule 5 to each part of the United Kingdom for which there is a Boundary Commission—

- (a) the expression “electoral quota” means a number obtained by dividing the electorate for that part of the United Kingdom by the number of constituencies in it existing on the enumeration date,
- (b) the expression “electorate” means—
 - (i) in relation to a constituency, the number of persons whose names appear on the register of parliamentary electors in force on the enumeration date under the Representation of the People Acts for the constituency,
 - (ii) in relation to the part of the United Kingdom, the aggregate electorate as defined in sub-paragraph (i) above of all the constituencies in that part,
- (c) the expression “enumeration date” means, in relation to any report of a Boundary Commission under this Act, the date on which the notice with respect to that report is published in accordance with section 5(1) of this Act.

9. In this Schedule, a reference to a rule followed by a number is a reference to the rule set out in the correspondingly numbered paragraph of this Schedule.

Section 7.

SCHEDULE 3

CONSEQUENTIAL AMENDMENTS

The Northern Ireland Constitution Act 1973

1973 c. 36.

1.—(1) Section 28 of the Northern Ireland Constitution Act 1973 shall be amended as follows.

(2) In subsection (2) for the words “section 2(1) or (3) of the House of Commons (Redistribution of Seats) Act 1949” there shall be substituted the words “section 3(1) or (3) of the Parliamentary Constituencies Act 1986”.

(3) In subsection (3) for the words “Act of 1949” there shall be substituted the words “Act of 1986”.

(4) In subsection (4) for the words from the beginning to “in report)” there shall be substituted the words “Sections 3(4) and (5),

4 and 5(1) (implementation of recommendations in report of Boundary Commission and publication of notice of proposed report)".

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(5) For subsection (5) there shall be substituted—

"(5) An Order in Council under the said Act of 1986 for giving effect, with or without modifications, to the recommendations contained in a report or supplementary report of the Boundary Commission for Northern Ireland may make amendments consequential on giving effect to those recommendations in section 1(1) of and in the Schedule to the said Act of 1973".

2. The said section 28 shall (notwithstanding the repeal by this Act of the House of Commons (Redistribution of Seats) Act 1979) continue to have effect with the substitution for subsection (6) of—

"(6) The coming into force of any such Order in Council shall not affect any election to the Assembly before the next general election to the Assembly or affect the constitution of the Assembly then in being."

The House of Commons Disqualification Act 1975

3. In Part III of Schedule 1 to the House of Commons Disqualification Act 1975 for the words "Part I or Part II of Schedule 1 to the House of Commons (Redistribution of Seats) Act 1949" there shall be substituted the words "Schedule 1 to the Parliamentary Constituencies Act 1986".

The Northern Ireland Assembly Disqualification Act 1975

4. In Part III of Schedule 1 to the Northern Ireland Assembly Disqualification Act 1975 for the words "Part I or Part II of Schedule 1 to the House of Commons (Redistribution of Seats) Act 1949" there shall be substituted the words "Schedule 1 to the Parliamentary Constituencies Act 1986".

The European Assembly Elections Act 1978

5.—(1) Schedule 2 to the European Assembly Elections Act 1978 shall be amended as follows.

(2) In paragraph 1—

- (a) for the words "section 3 of the 1949 Act" there shall be substituted the words "the 1986 Act", and
- (b) for the words "section 2(1)", in both places where they occur, there shall be substituted the words "section 3(1)".

(3) In paragraph 3—

- (a) for the words "section 3 of the 1949 Act" there shall be substituted the words "the 1986 Act", and
- (b) for the words "section 2(3)" there shall be substituted the words "section 3(3)".

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(4) For paragraph 4 there shall be substituted—

“4. A supplementary report of a Boundary Commission under this Schedule showing the Assembly constituencies into which they recommend that any area should be divided shall state, as respects each Assembly constituency, the name by which they recommend that it should be known.

4A—(1) Where the Boundary Commission for any part of Great Britain intend to consider making a supplementary report under this Schedule, they shall, by notice in writing, inform the Secretary of State accordingly, and a copy of the notice shall be published—

(a) in a case where it was given by the Boundary Commission for England or the Boundary Commission for Wales, in the London Gazette, and

(b) in a case where it was given by the Boundary Commission for Scotland, in the Edinburgh Gazette.

(2) As soon as may be after a Boundary Commission have submitted a supplementary report to the Secretary of State under this Schedule, he shall lay the report before Parliament together, except in a case where the report states that no alteration is required to be made in respect of the part of Great Britain with which the Commission are concerned, with the draft of an Order in Council for giving effect, whether with or without modifications, to the recommendations contained in the report.

4B—(1) The draft of any Order in Council laid before Parliament by the Secretary of State under this Schedule for giving effect, whether with or without modifications, to the recommendations contained in a supplementary report of a Boundary Commission may make provision for any matters which appear to him to be incidental to, or consequential on, the recommendations.

(2) Where any such draft gives effect to any such recommendations with modifications, the Secretary of State shall lay before Parliament together with the draft a statement of the reasons for the modifications.

(3) If any such draft is approved by resolution of each House of Parliament, the Secretary of State shall submit it to Her Majesty in Council.

(4) If a motion for the approval of any such draft is rejected by either House of Parliament or withdrawn by leave of the House, the Secretary of State may amend the draft and lay the amended draft before Parliament, and if the draft as so amended is approved

by resolution of each House of Parliament, the Secretary of State shall submit it to Her Majesty in Council.

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(5) Where the draft of an Order in Council is submitted to Her Majesty in Council under this Schedule, Her Majesty in Council may make an Order in terms of the draft which (subject to paragraph 8 below) shall come into force on such date as may be specified in the Order and shall have effect notwithstanding anything in any enactment.

(6) The validity of any Order in Council purporting to be made under this Schedule and reciting that a draft of the Order has been approved by resolution of each House of Parliament shall not be called in question in any legal proceedings whatsoever."

(5) After sub-paragraph (2) of paragraph 5 there shall be inserted—

"(3) Where a Boundary Commission revise any proposed recommendations after publishing a notice of them under this paragraph the Commission shall publish a further notice under this paragraph in relation to the revised recommendations, as if no earlier notice had been published."

(6) After paragraph 5 there shall be inserted—

"5A—(1) A Boundary Commission may, if they think fit, cause a local inquiry to be held in respect of any Assembly constituency or constituencies.

(2) Where, on the publication of the notice under paragraph 5 above of a recommendation of a Boundary Commission for the alteration of any Assembly constituencies, the Commission receive any representation objecting to the proposed recommendation from an interested authority or from a body of electors numbering five hundred or more, the Commission shall not make the recommendation unless, since the publication of the notice, a local inquiry has been held in respect of the Assembly constituencies.

(3) Where a local inquiry was held in respect of the Assembly constituencies before the publication of the notice mentioned in sub-paragraph (2) above, that sub-paragraph shall not apply if the Commission, after considering the matters discussed at the local inquiry, the nature of the representations received on the publication of the notice and any other relevant circumstances, are of opinion that a further local inquiry would not be justified.

(4) In sub-paragraph (2) above, "interested authority" and "elector" respectively means, in relation to any recommendation, a local authority whose area is wholly

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or partly comprised in the Assembly constituencies affected by the recommendation, and an elector for any of those Assembly constituencies; and for this purpose "local authority" means—

- (a) in England and Wales, the council of a county, London borough or district, and
- (b) in Scotland, the council of a region, islands area or district."

(7) In paragraph 6 for the words "paragraph 4" there shall be substituted the words "paragraph 5A".

(8) In paragraph 7 for the words "paragraph 4" there shall be substituted the words "paragraphs 4A and 4B".

(9) In paragraph 8 for the words "the provisions applied by paragraph 4 above", in both places where they occur, there shall be substituted the words "this Schedule".

(10) In paragraph 11—

- (a) for the words from "the 1949 Act", in the first place where they occur, to "Act 1958" there shall be substituted the words—

" 'the 1986 Act' means the Parliamentary Constituencies Act 1986", and

- (b) for the words "established by the 1949 Act" there shall be substituted the words "provided for by the 1986 Act".

(11) In paragraph 12 for the words "section 2(4) of the 1949 Act" there shall be substituted the words "paragraph 4A above".

The Finance (No. 2) Act 1983

1983 c. 49.

6. In section 7(1) of the Finance (No. 2) Act 1983 for the words "section 3 of the House of Commons (Redistribution of Seats) Act 1949" there shall be substituted the words "the Parliamentary Constituencies Act 1986".

SCHEDULE 4

Section 8.

REPEALS

Chapter	Short Title	Extent of Repeal
11 & 12 Geo. 6. c. 65.	The Representation of the People Act 1948.	Section 1(1). Section 81.
12, 13 & 14 Geo. 6. c. 66.	The House of Commons (Redistribution of Seats) Act 1949.	The whole Act.
6 & 7 Eliz. 2. c. 26.	The House of Commons (Redistribution of Seats) Act 1958.	The whole Act.
1963 c. 33.	The London Government Act 1963.	Section 4(7)(c). Section 8(1). In Schedule 3, in Part II, paragraph 21.
1973 c. 36.	The Northern Ireland Con- stitution Act 1973.	Section 28(7).
1973 c. 65.	The Local Government (Scotland) Act 1973.	In Schedule 3, paragraphs 1 and 19.
1979 c. 15.	The House of Commons (Redistribution of Seats) Act 1979.	The whole Act.
1986 c. 12.	The Statute Law (Repeals) Act 1986.	In Schedule 2, paragraph 4(1).